

C24/67/2021 on 23 December, 2021

Author: Alok Kumar Verma

Bench: Alok Kumar Verma

IN THE HIGH COURT OF UTTARAKHAND
AT NAINITAL

THE HON'BLE SRI JUSTICE ALOK KUMAR VERMA

23RD DECEMBER, 2021

CIVIL TRANSFER APPLICATION No.67 of 2021

Between:

Smt. Arti Rayal. ...Applicant

and

Anupam Rayal. ...Respondent

Counsel for the Applicant : Ms. Sangeeta Bhardwaj.

Counsel for the Respondent: Mr. Devang Dobhal.

Hon'ble Alok Kumar Verma,J.

In compliance of the order dated 11.11.2021, Smt. Arti Rayal, the petitioner and Shri. Anupam Rayal, the respondent, are present in-person with their learned counsel.

2. An efforts was made for mediation between the parties, but, the mediation could not be successful.

3. This Civil Transfer Application has been filed by the applicant-wife, under Section 24 of the Code of Civil Procedure, 1908 seeking for transfer of Original Suit No.110 of 2021, "Anupam Rayal vs. Smt. Arti Rayal", filed under Section 9 of the Hindu Marriage Act, 1955, pending before the Family Court, Tehri, District Tehri Garhwal to the Family Court, Rishikesh, District Dehradun.

4. Heard Ms. Sangeeta Bhardwaj, the learned counsel for the applicant and Mr. Devang Dobhal, the learned counsel for the respondent.

5. During arguments, the learned counsel for both the parties are agree to transfer the said Original Suit to the court of Principal Judge, Family Court, Dehradun.

6. In view of the above facts and circumstances of the case and on the consent of the learned counsel for both the parties, the present application is required to be allowed accordingly.

7. The applicant-Arti Rayal has received the amount of Rs.4,000/- from the respondent Shri Anupam Rayal for her expenses for today.

8. The application of the applicant, filed under Section 24 of the Code of Civil Procedure, 1908 is allowed accordingly. The Original Suit No.110 of 2021, "Anupam Rayal vs. Smt. Arti Rayal", filed under Section 9 of the Hindu Marriage Act, 1955, pending before the Family Court, Tehri, District Tehri Garhwal, is transferred to the Court of Principal Judge, Family Court, Dehradun.

9. The record of the case shall be forthwith transferred to the transferee court, which shall take the matter and shall decide the same according to law and as expeditiously as possible.

10. A certified copy of this order be sent to the Family Court, Tehri, District Tehri Garhwal and to the Principal Judge, Family Court, District Dehradun for necessary compliance.

_____ ALOK KUMAR VERMA, J.

Dt: 23rd December, 2021 Neha